



West Bengal State Electricity Distribution Company Limited
(A Govt. of West Bengal Enterprise)

Registered Office: Vidyut Bhavan, Bidhannagar, Block-DJ, Sector-II, Kolkata-700 091
CIN: U40109WB2007SGC113473, website: www.wbsedcl.in

Office Order No. : 901

Dated : 10-11-2014

Sub: E-tendering Policy and E-Tendering Procedure of the Company

The Company has already issued guideline for introduction of e-tendering for all procurements and purchases having value beyond Rs. 5 lakh. It was felt necessary to formulate a comprehensive e-tendering Policy and e-tendering procedure in the Company for smooth and hassle free operation of the e-tendering. Accordingly, the Board of Directors in its 51st meeting held on 17.10.14 approved the 'E-Tendering Policy and e-Tendering Procedure' of the Company. This Policy will be effective from 17.10.2014.

This policy and procedure will be applicable for all procurement works and services having estimated contract value of Rs.5 lakh excepting items listed under "specific exclusion". However, the single bid system or two bid system of tender for the purpose of e-tendering shall be adopted as per applicability and in line with the CVC guidelines. The activities falling outside the scope of and coverage of e-tender will be considered under the conventional system of tendering as per present policy and guideline in force.

It has further been decided that the portal for e-tendering would be National Informatics Centre (NIC). The procedure for e-tendering contains details relating Process, Duties & Responsibilities, Special situations, General applicability.

In case any modification/alteration of any clause of the E-tendering Policy and E-tendering Procedure is felt necessary, the matter may be referred to the Chairman and Managing Director of the Company who is competent to take a decision for administrative convenience with information to the Board.


(T. K. Rudra)
Director(HR)

Policy of e-Tendering in WBSEDCL

1. Preface: - This document containing broad guidelines for e-Tendering for all procurement, works and services excepting the items/activity appearing in the 'Specific Exclusions' is framed with an objective that it would help all concerned in adopting the proposed automated, web-based e-Tendering System for on-line evaluation and thereby reducing the human intervention in evaluation of tender, reduction of cycle time of tendering and uniformity in practice. However, any improvement/modification to these guidelines may be adopted by WBSEDCL with the approval of CMD, WBSEDCL.

2. Portal of e-tendering :- The portal for e-tendering procedure would be NIC, until further amendment.

3. Scope & Coverage :- The e-Tendering system will cover the following :

- A. Any tender having Estimated Contract Value (ECV) of Rs. 5 lakh and above unless appearing in "Specific Exclusions".
- B. All the steps involved starting from hosting of Tenders (based on approved and financially concurred estimate/indent) till outcome of L-1 bidder is covered like Creating and Hosting of NIT, Downloading and submission of bids, Opening of Tender and Evaluation of bids online on the e-Tendering portal of NIC with validation of Tender Committee.
- C. The single bid system or two bid system of tender for the purpose of e-tendering should be adopted as per applicability and in line with CVC Guideline.
- D. The activities falling outside the scope and coverage of e-tender would fall under conventional system of tendering as per present policy and guideline in force.
- E. Any aspect not covered in this document, shall be guided by existing policies and amendments made thereto.

4. Specific Exclusions.

A. Procurement

- I) Medicines and Medical equipment & allied consumables.
- II) Steel and Iron materials from Primary Producers.
- III) Procurements under approved rate contracts finalised through tendering.
- IV) Spares of Original Equipment Manufacturer (OEM) or the authorised agencies of OEM.
- V) Procurement of emergent nature arising out of the event of contingencies.
- VI) Finalisation of rate contract in respect of LT Spacer, PCC Pole, Cut-out, Stay Set, Earth spike.

B. Works

- i) Erection work covered in schedule of Erection Rates.
- ii) Repair and Maintenance work of Distribution Transformer under approved rate contracts finalised through tendering.
- iii) Emergency Repairs & Maintenance at Hydro-electric Projects/Stations & Pumped Storage Projects/Stations.

- iv) Overhauling of Equipment & Machinery by OEM or their Authorized Agencies.
- v) Erection of stalls and pavilions at trade fairs and exhibitions.
- vi) Part or portion of erection work not covered in Schedule of Erection Rates & that the estimated contract value of that part or portion is less than Rs. 5 lac.

C. Services

- i) HT line LT line maintenance via mobile van service including any services covered during night.
- ii) Operation of Substation.
- iii) Meter reading
- iv) Courier Services.
- v) Hiring of vehicle
- vi) Repairing of Vehicle
- vii) Procurement of Railway & Air Ticket
- viii) AMC & Repair maintenance of IT articles, AC Machines, Electrical Gadgets & EPABX
- ix) Upkeep and services of Canteen
- x) Up Keep and services of Inspection Bungalow and Guest House
- xi) Appointment of Auditor, Cost Auditor, Secretarial Auditor as required under Companies Act, 2013.
- xii) Appointment of Tax Auditor as required in Income Tax Act 1961..
- xiii) Identification & Valuation services.
- xiv) Consultancy on legal & allied law services.
- xv) Taxation & Regulatory services.
- xvi) Services rendered by Specialized bodies in the field of Geology, Environment & Hydrology, Metrology, Electricity, Survey.
- xvii) Services related to Physical Stock verification.
- xviii) Services for Special Audit undertaken by the Company
- xix) Web enabled service as a complementary service to the ERP system.
- xx) Coverage of Insurance.
- xxi) Services related to Measurement of items of Stores.
- xxii) Investment of fund

D. POWER PURCHASE

Long-term Power Purchase

Nodal Officer:

Nodal officers in each Zone, Hydrel Head Quarter and at Vidyut Bhawan would be entrusted with the following functions:-

- a. To co-ordinate and correspond with the service provider, Bidders , User Departments and other concerned authorities such as Banks, Auditors etc. for the effective and efficient implementation of e-Tendering.
- b. Arrangement of Training to Bidders and Departmental Users for adoption of automated web based e-Tendering mode.
- c. To coordinate for the Infrastructure development for the proper implementation of the e-Tendering system
- d. To arrange necessary helpdesk for online and offline support to different stakeholders of the system
- e. To arrange and update the Digital Signature Certificate for departmental users
- f. To arrange Publicity and facilitate change management for smooth migration from manual system of tendering to electronic mode.
- g. To assist the user departments in finalizing the different, formats of documents etc. for the e Tendering system.
- h. To Administer the e-Tendering Application and Online User Management.

Procedure of E-Tendering at WBSEDCL

6. THE PROCESS

- a. I) Tender for the sanctioned and financially concurred estimates will be published on the e-Tendering portal by authorized officials of WBSEDCL with Digital Signature Certificate (DSC). The authorized officials for this purpose will be the HOD of the concerned unit or department located at Vidyut Bhawan. In respect of units located outside Vidyut Bhawan, the Head of offices or units shall be the authorised official for this purpose. The tender may also be created by an official not below the rank of Class-I officer as authorized by the HOD or head of Office for the same office/unit/department, publishing the tender provided that HOD or Head of Office is not below the rank of Additional Chief Engineer and the authorisation shall be with prior approval of concerned Director. While creating/publishing the tender the "Bid Openers" will be identified who will be essentially be the Tender Committee. The number of bid opener will be three.
- II) The tender Committee shall necessarily mean the following for all the office/units/departments having unique accounting code & located outside Vidyut Bhawan:
 - i) Seniormost official of Engineering discipline of the office /unit/department.
 - ii) Seniormost official of Finance & Accounts discipline of the same office/unit/department .
 - iii) Seniormost official of HR & A discipline or Senior most official of Establishment section of the same office/unit/ department where official of HR & A discipline is not available.

However, if the Senior most official of the Engineering discipline is in the rank of Additional Chief Engineer or Chief Engineer, he/she may consider to authorize any other official(s) of the same discipline not below the rank of Superintending Engineer to substitute to act as the member of the tender committee with the prior approval of concerned Director. The act of substitution cannot be resorted to be a temporary measure but to ensure convenience and can be changed only in the event of transfer & other unavoidable reasons. The number of such substitution can exceed one which would be dependent on multifariousness of the activity and related field of the said offices/unit/department.

III) For office/unit/ department located within Vidyut Bhawan having unique accounting code, following members would be deemed to be the member of the tender committee, unless separately constituted:

- i) Senior most official of Engineering Discipline of an office/unit/department.
- ii) Senior most official of Finance & Accounts discipline of the same offices/unit/ department or any official nominated by Senior most official of Finance & Accounts discipline of the same offices/unit/department having more than one class-I officer under Finance & Accounts Discipline with the approval concerned Director. The nomination shall not be on temporary basis & can be changed only in the event of transfer & other unavoidable reasons.
- iii) Senior most official of HR & A discipline where exists, else any official of Establishment section of the same offices/unit/department as nominated by the Head of Office/HOD/Head of unit as the case may be.

However, if the senior most official of the Engineering discipline is in the rank of Additional Chief Engineer or Chief Engineer, he/she may consider to authorize any other official(s) of the same discipline not below the rank of Superintending Engineer to substitute to act as the member of the tender committee with the prior approval of concerned Director. The act of substitution cannot be resorted to be a temporary measure but to ensure convenience and can be changed only in the event of transfer & other unavoidable reasons. The number of such substitution can exceed one which would be dependent on multifariousness of the activity and related field of the said office/unit/department.

IV) For office/unit/ department located within Vidyut Bhawan not having unique accounting code, following members would be deemed to be the members of the tender committee, unless separately constituted:

- i) Senior most official of Engineering Discipline of office/unit/department.
- ii) Senior most official of Finance & Accounts discipline of the office/unit/department who performs the activity relating to Local Finance.

Or any official nominated by Senior most official of Finance & Accounts discipline of the said offices/unit/department having more than one class-I officer under Finance & Accounts Discipline. The nomination shall not be on temporary basis & can be changed only in the event of transfer & other unavoidable reasons.

Or any official of F & A discipline who has been assigned to work as local Finance.

- iii) Senior most official of HR & A discipline where exists, else any official of Establishment section of the same office/unit/department as nominated by the Head of Office/HOD/Head of unit as the case may be.

However, if the Senior most official of the Engineering discipline is in the rank of Additional Chief Engineer or Chief Engineer, he/she may consider to authorize any other official(s) of the same discipline not below the rank of Superintending Engineer to substitute to act as the member of the tender committee with the prior approval Concerned Director. The act of substitution cannot be resorted to be a temporary measure but to ensure convenience and can be changed only in the event of transfer & other unavoidable reasons. The number of such substitution can exceed one which would be dependent on multifariousness of the activity and related field of the said offices/unit/department.

- V) For unit/ department/cell falling under Corporate having no accounting code, following members would be deemed to be the members of the tender committee, unless separately constituted and unless separately constituted or assigned as the case may be:
- i) Senior most official of a unit/department/cell.
 - ii) Official of Finance and Accounts discipline posted at F. A. Cell, Corporate or Establishment-Corporate to be assigned by concerned Director on activity to activity basis or any official of F & A discipline who has been already assigned as local Finance
 - iii) Any other official nominated by the official as stated in (i) above with prior approval of concerned Director.

- N.B
- 1) The assignment or nomination or substitution shall be done through issuing Office Order.
 - 2) HOD shall be the authority as defined in Schedule of Delegation of Power.
 - a. The Digital Signature Certificates(Class-II/III) both for signature and encryption shall have to be obtained by the users from certifying agency of service provider which is authorized by CCA (Controller of Certifying Authority) of Govt. of India. The bidders will have to obtain the Digital Signature Certificate from any certifying agency which is uthorized by CCA (Controller of Certifying Authority) of Govt. of India traced upto the chain of trust to the root certificate of CCA.
 - b. User ID and pass-word are strictly personal to each authorised user and non-transferable. The user shall ensure that its authosised user do not divulge or disclose their user ID or pass word to pass word to third parties. In the event that the Authorised user comes to know that the user ID/Pass word has been/might have been divulged, disclosed or discovered or discovered by any third party, user of its authorised user shall immediately modify the password using "Change Pass Word" option.
 - c. Tender will be created on-line by the concerned office/unit/department indicating all the salient details such as description of work, estimated value, period of work, bid validity period, date of pre-bid meeting (if required), start date and last date & time of submission of bid, period for seeking clarifications online by the bidder, date and time of opening of Technical bid, etc. and by uploading Notice Inviting Tender (NIT) and Terms & Conditions of contract.
 - d. Pre-bid meeting in compliance with stipulation in the tender may take place, if required, after publication of Tender but in any case at least 1 day before the start date of Bid submission. If a Pre Bid meeting is held then the minutes of the Pre-Bid meeting shall be uploaded on the Portal which can be viewed by all interested bidders. The amendments arising out of the outcome of pre-bid discussion shall have to be uploaded in the portal.
 - e. The bid submission will start after conclusion of pre-bid meeting, if held and shall continue for the days as specified in the tender. The Technical bid may be opened after last date and time of submission of bid on the pre-scheduled date and time.
 - f. The Tender can be downloaded by any prospective bidder from the website .The download of tender may start immediately after e- Publication of NIT and shall continue till the last date

and time of bid submission. The cost of tender, if any, shall be submitted along with the EN.

g. **Registration / Enrolment of Bidder on e-Tendering Portal of NIC:**

In order to submit the Bid, the bidders have to get themselves registered online on the e Tendering portal of NIC with valid Digital Signature Certificate (DSC) issued from any agency authorized by Controller of Certifying Authority (CCA), Govt. of India and which can be traced up to the chain of trust to the Root Certificate of CCA. The online Registration of the Bidders shall be one time activity only. The registration should be in the name of bidder, whereas DSC holder may be either bidder himself or his duly authorized person.

- h. The bidders will have to accept unconditionally the online user portal agreement which contains the acceptance of all the Terms and Conditions of NIT including General and Special Terms & Conditions and other conditions, integrity Pact etc. if any, along with on-line undertaking in support of the authenticity of the declarations regarding the facts, figures, information and documents furnished by the Bidder on-line in order to become an eligible bidder. No conditional bid shall be allowed/accepted. This user portal agreement will be a part of NIT/Contract Document.
- i. In the undertaking given by bidder online, there will be provision for penal action, if any information/ declaration furnished online by the bidder against eligibility criteria is found to be wrong at any stage which changes the eligibility status of the bidder.
- j. The bidder may seek clarification within the specified period. The office/unit/department will clarify all the relevant queries of bidders. The clarifications may be asked from the next day of Publication of NIT. The tender publishing authority will be responsible for giving the clarifications within the prescribed time frame. However, if the tender publishing authority feels that the query is of such nature that advice of tender committee or any other authority is required to give clarification, he may do so to reply the queries within the prescribed time limit.
- k. **Corrigendum to NIT:** Corrigendum should be issued only in exceptional cases with due approval from the Authority as laid down Schedule of Delegation of Power. Corrigendum may be issued only for change of dates or correction of address. However, the extension of date for an event will be possible only before the expiry of earlier specified date and time for that particular event. Pre-ponement of date for any event is not permitted.

No corrigendum in respect of change in scope of work, quantity and estimated value of work or any other specific condition shall be issued. If any such change becomes essential then a fresh NIT should be issued notifying the cancellation of earlier NIT. If date of submission of tender is to be extended, then the last date of submission of the tender should be suitably extended with reasonable extension of time and to be notified well in advance to allow the intending bidders adequate/reasonable time period for submission of their tender offers within the notified extended time period. The Corrigendum Notice must be given the same publicity as given to the original NIT.

- l. **Cancellation of Tender:** Any tender published on the e-Tendering portal must be concluded to its logical end i.e. either "Award of Contract" or "Cancellation of Tender" or "Re-tender". It will be the responsibility of the Publisher of tender to conclude the published tenders to its logical end within the original bid validity period. Tenders should be cancelled only under exceptional cases with due approval of authority as laid down in the Schedule of Delegation of power. In all such cases the Tender Cancellation Notice must contain the details of the circumstances leading to cancellation of tender. The Cancellation of Tender on the e-Tendering portal can be done by way of creation and publication of corrigendum. However, since Cancellation of Tender, in true sense, is not a Corrigendum to NIT, the Tender Cancellation

Notice will be uploaded only on the e-Tendering portal.

- m. **EMD:** The bidder will have to submit EMD on OFFLINE mode. The bidder can make payment of EMD in the form of Bank Guarantee (BG) (if applicable)/ Demand Draft/Pay Order from any scheduled bank. The bidder will furnish all the details online i.e. BG Number, Demand Draft Number, Pay order number date of issue, expiry date, name of issuing bank and amount etc(where applicable). regarding EMD alongwith a scanned copy. The original BG will be submitted by bidder in person which must be received in the office of tender publishing authority on any working day after e-publication of NIT and up to the date specified in the NIT.

In case of discrepancy between the online submitted information regarding the instruments for EMD and the original instrument being submitted by the bidders, the later shall prevail if the instrument is valid on the date of submission of the tender by the bidder and if it does not change the eligibility status of the bidder.

The EMD for all tenders would be as per relevant policy.

- n. The qualification in Technical bid will be subject to the receipt and acceptance of EMD within schedule date and time as mentioned in the NIT WBSEDCL shall not be responsible for any delay in receipt of EMD. In case the EMD is not received within the aforesaid period, the bid will be outrightly rejected.
- o. For online bid submission the bidder will be required to upload scanned copy of various relevant documents as stipulated in the tender.
- p. **Withdrawal of Tenders by the Bidder:** Once the tenders have been submitted, the tenderers will not have the option to withdraw offer within the validity period. If any tenderer withdraws his tender before expiry of validity period or makes any modification in the terms and condition of tender which are not acceptable to the company, then the company shall without prejudice to any other right or remedy, be at liberty to forfeit the earnest money and also suitable actions. could be contemplated against each erring bidder by the Company.
- q. The Part I i.e. Technical bid will be opened on a pre specified date. After the pre-scheduled date and time of tender opening, the Technical bids (Cover-I) will be decrypted on line and will be opened by the "Bid Openers" along with their Digital Signatures Certificates.
- i. Tender will be opened on the pre-scheduled date only on receipt of sufficient responses. Extension of pre-scheduled date in that event shall be considered based on the situation.
- ii. The evaluation of the Technical bid shall be done entirely offline. For this purpose all the required parameters will be obtained from the Bidders in the form of both the credentials as well as in objective and structured manner. Bidders will be required to upload scanned copy of various confirmatory/supporting documents against their furnished information for the evaluation process as per provision of NIT.
- iii. If the information furnished by the bidder in objective manner is not confirmed by the uploaded documents then the bidder will be out rightly rejected for Price Bid opening. The documents related to the furnished online information based on which the evaluation takes place will only be considered. If the bidder uploads any other document, it will be given no cognizance.
- iv. The Technical evaluation of Tenders will be done based on uploaded relevant documents as per the list specified in the NIT.
- v. The Tender Committee or any standing committee or functional committee, if exists or constituted separately will make its recommendations on Techno Commercial part based on the copy of documents uploaded online by bidders.

- vi. Acceptance of Bidder in a general form of online declaration will be recognized and accepted, certification regarding authenticity of all the information and documents furnished by them on-line and acceptance of all terms and conditions of the bid document, since such acceptance by Bidder with Digital Signature Certificate is legally tenable.
- r. After opening the technical bid the acceptance of EMD by Tender Committee will be entered online by the Bid Opener of tender publishing department (Evaluator of tender). Evaluation sheets shall be downloaded during opening of Part-I (Technical-bid) and shall be placed before the Tender Committee for validation. The Tender Committee will validate the evaluation of Technical bid based on the information furnished by bidder on-line and the supporting documents uploaded by the bidder. The evaluation sheets shall be authenticated by way of signature by Tender Committee and shall be kept in the relevant file. The brief Tender Committee Recommendation based on the evaluation will be made for opening of Price bid of eligible bidders. The Part-I of Tender Document will not require any approval, of the accepting authority of the tender, unless any standing or functional committee exists for the purpose of recommendation. The summary of technical evaluation (Part-I of Tender Document) with the names of eligible bidders and the brief reasons for disqualification of unsuccessful bidders (if any) along with the date of Price-bid opening will be uploaded by the Evaluator of Tender. Date of Price-bid opening shall be kept sufficient days after the date of uploading of the summary of technical evaluation. All the bidders will get this information on their personalized dash-board. Additionally, information shall also be sent by system generated e-mail and SMS, but it will be the bidder's responsibility to check the updated status/information on their personalized dash board at least once daily after opening of bid. The Part- I of tender will be an integral part of the final recommendation to be processed for approval of the competent authority.
- s. After acceptance and authentication of evaluation of Part-I (Technical-bid) all the bidders will get the information regarding their eligibility on their personalized dash-board on-line and also by system generated e-mail and SMS. The summary of evaluation result with the names of eligible bidders and the brief reasons for disqualification of unsuccessful bidders will be uploaded for displayed on the Portal. The brief reasons for disqualification will be uploaded by Tender Publishing authority based on the Tender Committee or any other Standing Committee recommendation.
- t. The EMD of unsuccessful bidders will be refunded as per existing policy and amendments made thereto.
- u. The Price bid of the successful bidders (qualified in technical-bid) will be decrypted and opened on the scheduled date and after the pre-scheduled time by the Bid Openers with their Digital Signature Certificate. The Bidders may view the price bid opening online remotely and can see the Price-bid/BOQ submitted by all participating bidders. The Price bids and system generated Comparative Statement will be downloaded and will be signed by the Tender Committee. This will be kept in the relevant file. The concerned evaluator shall evaluate the price bid as generated by system and ensure correctness of the same before uploading in the portal. In case of discrepancy between the system generated comparative statement and evaluated comparative statement, the evaluated comparative statement shall prevail.
- v. After opening of Price bid the Comparative Statement of Prices indicating the rates quoted by all the bidders and rank of bidders as evaluated by the evaluator will be visible to all the participating bidders online. This will be available for public viewing also.
- w. It will be the bidder's responsibility to check the status of their Bid on-line after the opening of Technical bid till award of work. Additionally, information shall also be sent by system generated e-mail and SMS at nodal points (Technical evaluation, date of price-bid opening, financial evaluation, award of work etc.). No separate communication will be required in this regard.
- x. All the details of technical bid and price bid will be kept preserved in the archives for auditing purposes and the same can be accessed with special authorization. The IP address of all the bidders,

if available who has participated in the bid along with timing and date will also be kept preserved in the system.

- y. The validity of tenders shall be as stipulated in Purchase Policy.
- z. The Tender Committee or any standing or functional committee constituted for such purpose will recommend for award of work/placement of order to the successful bidder after evaluation of the reasonableness of L-1 rates. The approval for award of work to L-1 bidder will be accorded by the competent authority as per Delegation of Power based on the recommendation of the Head of the Office/Unit/Department.
- aa. Price Matching: as per existing policy & amendment made thereto shall be carried out, if the situation so demands and the request for such price matching shall be uploaded in the portal. The responses of the bidders to the request for price matching may be made by way of uploading in the portal by the bidder, if facility exists. Otherwise responses of the bidders may also be carried out by post or in person.
- bb. After Financial Concurrence and approval of Competent Authority of the proposal, the Purchase order/ Erection order/Execution order/LOA as the case may be to the L-1 bidder will be issued and the scanned copy of the Purchase order/Erection order/Execution order/LOA will be uploaded on the e-Tendering portal and the original copy will be sent to the bidder through registered/speed post.
- cc. Any tender hosted on the e-Tendering site must be logically concluded i.e. either Award of work is issued or the tender is cancelled OR it is retendered online through corrigendum.
- dd. The processes for entering into the agreement with the successful bidder will be done offline as per the prevailing manual system. However, the documents required to be submitted by selected bidder(s) for executing the agreement will be specified in the Tender document.

7. THE DUTIES AND RESPONSIBILITIES :

The following Roles have been identified for the departmental users, which are to be executed with valid Digital Signature Certificate:

- **THE CREATOR OF TENDER:** - He will have the privilege of creating the Tender based on the approved and financially concurred Estimate. The creator of the tender would be the official as referred in Sl. No.6(a)(I).
- **THE PUBLISHER OF TENDER:** - He will be the head of unit or office or HOD of the tender publishing department and will be the responsible person for timely and accurately hosting of tender on the e-Tendering portal with his Digital Signature Certificate. The publisher of the tender would be the official as referred in Sl. No.6(a)(I).
- **THE OPENERS OF TENDER:** - The tender will be decrypted and opened with the Digital Signatures Certificate of Bid Opener as identified during creation of the tender. The bid opener will have to access the portal one by one for decryption and opening of bid. The Openers will be all the members of the Tender Committee as stated at Sl nos.6(a)(II), 6(a)(III),6(a)(IV),6(a)(V)
- **THE EVALUATOR OF TENDER:** - The Evaluator of the tender would be the opener of the tender unless separately constituted by an authority not below the rank of Chief Engineer or by OSD. The number of digital signature holder should not exceed three to be decided by the chairman of the Committee, where the number of the member of the Committee exceeds three.
- The Tender committee will accept and validate the receipt of EMD and on-line evaluation of Technical Bid. The reason of disqualification of bidder, if any, will be recorded in and will be uploaded by the Evaluator online in the system. Similarly the financial evaluation will be done by Tender Committee and the outcome will be uploaded by the Evaluator online.

8. SPECIAL SITUATIONS :

- a. In case of any transfer Or change of role it will be the responsibility of the user to intimate Nodal Officer the change and Nodal Officer will arrange to change the role in the portal accordingly.
- b. In cases of transfer of service owing to deputation or superannuation or in situations of resignation, the official having DSCs will have to obtain the clearance regarding handover of DSC at the time of release from WBSEDCL. The Official posted at Vidyut Bhawan should obtain clearance from concerned HOD and in case of the officials posted outside Vidyut Bhawan, the clearance may be obtained from the respective Zone or Hydel Headquarter as the case may be.
- c. In case the Digital Signature Certificate is lost or misplaced, FIR should be lodged by the concerned executive and Head of office/unit/Department should be informed immediately with a copy of FIR. Effort will be made to obtain another copy of DSC from the DSG provider and till such period the date of opening of Tenders in which he has already been assigned the role of Bid Opener will have to be extended. In case it is not possible to prepare a copy of the DSC due to any reason, the Tender, which are yet to be opened will be cancelled and re-tendered.
- d. For any change of role of departmental user, a written request to be made by the user to the concerned HOD /Head of unit/Office.
- e. All the DSCs of officials before they retire must be deposited to the office or unit or department last attached.
- f. In the event, any of the member of the tender committee is absent on the date of bid opening owing to unavoidable circumstances or any reason, the date of opening of the tender shall be re-scheduled.

8. General applicability.

- i) One official can have multiple roles depending upon the activity or demand of the situation.
- ii) The aspect relating to Promotional Orders shall be guided as per existing policy & amendments made thereto.
- iii) All system generated documents and reports as the case may be shall be downloaded by the entrusted officials. Those should be signed by the authorised officials and be placed in the relevant files.
- iv) Any matter not covered in this document shall be guided by existing policy, procedure, guideline and Amendments there to.

9. PROFORMA FOR UNDERTAKING TO BE SUBMITTED BY THE BIDDER
(For genuineness of the information furnished on-line and authenticity of the documents
produced before Tender Committee for verification in support of his eligibility)

I, _____, Partner/Legal Attorney/ Accredited
Representative of M/S _____, solemnly declare that:

1. We are submitting Tender for the Work _____
against Tender Notice No. _____ dt _____
2. None of the Partners of our firm is relative of employee of _____
(Name of the Company)
3. All information furnished by us in respect of fulfilment of eligibility
criteria and qualification information of this Tender is complete, correct and true.
4. All documents/ credentials submitted along with this Tender are
genuine, authentic, true and valid.
5. If any information and document submitted is found to be false/ incorrect any
time, department may cancel my Tender and action as deemed fit may be taken
against us, including termination of the contract, forfeiture of all dues including
Earnest Money and banning / delisting of our firm and all partners of the firm etc.

Signature of the Tenderer

Dated _____

10. Format of Letter of Bid

LETTER HEAD OF BIDDER (AS ENROLLED ONLINE ON e-Tendering PORTAL OF NIC)

To

The Tender Committee

Sub: Letter of Bid for the work

.....
.....
.....
.....
.....

Ref : 1. NIT

No.: dated.....
.....

2. Tender Id No. :

Dear Sir,

We offer to execute the work as per our offered bill of quantity in accordance with the conditions of the NIT document as available in the website. The details of the EMD being submitted by us has been furnished on-line.

This Bid and your subsequent Letter of Acceptance/ Work Order shall constitute a binding contract between us.

We hereby confirm our acceptance of all the terms and conditions of the NIT document unconditionally.